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Graduation Requirements

Frequently Asked Questions about NYS Graduation Requirements

Acceleration

1. Can students earn credit for coursework completed prior to grade 8?

With the exception of coursework in world languages, students cannot earn diploma credit for commencement-level coursework completed in public NYS schools prior to grade 8. Additional information can be referenced in [Section 100.4\(d\) of the Regulations of the Commissioner of Education](#) and the [Guidance on Grade 8 Acceleration for Diploma Credit](#) (P-16 News and Notes, December 2007).

While diploma credit would not be granted for such courses, students would maintain any passing assessment scores. For example, a student passed an Algebra I course in grade 7 and also passed the Algebra I Regents Exam. The student maintains the passing Regents Exam score, but no course credit would be added to their transcript.

If the coursework is completed at another educational institution, the decision would be locally determined. The decision to award credit for coursework completed at other educational/cultural institutions is based

on whether the work completed is deemed, by the principal and relevant faculty, to be consistent with the NYS high school learning standards and of comparable scope and quality to that which would've been done in the school or district awarding the credit. Additional information can be referenced in [Section 100.5\(d\)\(5\) of the Regulations of the Commissioner of Education](#).

2. Can students graduate high school in fewer than four years?

Yes, students can accelerate their graduation. Additional information can be referenced in [Section 100.5\(e\) of the Regulations of the Commissioner of Education](#).

3. What are the graduation requirements for students who accelerate their graduation (graduate in fewer than 8 semesters)?

Students who accelerate their graduation must meet the [assessment requirements for their diploma type](#).

The only area where there may be a credit reduction is physical education. Students must earn $\frac{1}{4}$ credit for every semester they're enrolled in a NYS high school. For example, a student met all other diploma requirements by the end of their junior year. The student could graduate with $1\frac{1}{2}$ credits in physical education (this would reduce the total credit requirement to $21\frac{1}{2}$ credits). Additional information can be referenced in the [Physical Education Regulatory Amendments memo](#).

This section includes appeals process, [special appeals](#), and [traditional appeals](#).

Appeals Process

1. What is the appeals process?

An appeal committee comprised of the school principal as chair, three teachers (not including the teacher of the student making the appeal), and one additional administrator will review the appeal to determine if the student has demonstrated the knowledge and skills required. The appeal committee may, in its discretion, interview the student or the teacher or department chairperson recommending the appeal. The appeal committee shall review an appeal within ten school days of its receipt and make a recommendation to the school superintendent, or in the case of New York City, the Chancellor or their designee, to accept or deny the appeal. The superintendent or in the case of New York City, the Chancellor or their designee, may also interview the student and will sign off on all appeals.

2. Are appeals to earn a diploma with a lower score on a Regents Examination subject to NYS Education Department approval?

No. The school superintendent or, in the case of New York City, the Chancellor or their designee, or the equivalent administrator of a charter school or registered nonpublic school, shall make a final determination to accept or deny the appeal.

3. Who can bring forth an appeal?

An appeal may be initiated by the student, the student's parent or guardian, the student's teacher including the school counselor, or the department chairperson.

4. Does the appeals process need to be completed immediately after a score is earned?

No. The appeals process may be completed any time prior to a student's graduation. However, once an appeal is requested, the school should respond within 10 school days.

5. May a student use the appeals process in order to graduate with a lower score on a Regents Examination in conjunction with the 4 +1 Pathway option?

Yes. Regardless of the pathway chosen, a student who meets the appeal criteria may utilize the appeal process to meet the diploma requirements.

6. Is there a maximum number of appeals that can be applied to a specific diploma type?

- Regents diploma: In addition to any special appeals, students may continue to meet the assessment requirements for the Regents diploma using one traditional appeal no more than five points below passing (score range of 60-64).
- Local diploma: In addition to any special appeals, students may continue to meet the assessment requirements for the NYS local diploma using a maximum of two traditional appeals.
- Advanced designation: Traditional appeals may not be used

towards the Regents diploma with advanced designation.

Additional information on the traditional appeal process may be referenced in the [Appeal to Graduate with a Lower Score on a Regents Examination memo](#) .

7. How are appeals to earn a diploma with a lower score on a Regents Examination reported to the NYS Education Department?

The district must report the actual score earned, through the Student Information Repository System (SIRS). Schools must maintain a copy of the summary form. In the fall, the district will also need to report the appeal information on the district's Basic Educational Data System (BEDS) form. Additional information can be referenced in the Department's [SIRS Manual](#).

8. Where can I find additional information on the appeal process, including the appropriate forms needed to record appeal actions?

Additional information, including the [Special Appeal to Earn Diplomas with a Lower Score on a Regents Examination Taken in the 2021-22 or 2022-23 School Year form](#)  and the [Traditional Appeal form](#) , is available on the [Appeals, Safety Nets, and Superintendent Determination](#) webpage.

9. Where should questions regarding appeals be directed?

Questions related to a specific student's appeal request should be directed to the student's school counselor, teacher, and/or principal. Questions related to the appeals process can be forwarded to the Office

of Standards and Instruction at emscgradreq@nysed.gov or (518) 474-5922.

Special Appeals

10. Are all students eligible for the special appeal to earn a diploma with a lower score on a Regents Examination taken in the 2021-22 or 2022-23 school year?

Any student who meets the following eligibility conditions may request an appeal to earn a diploma with a lower score on a Regents Examination.

- The student must have taken the Regents Examination during the June 2022, August 2022, January 2023, June 2023, or August 2023 test administration periods.
- The student must have a score of 50-64 on the Regents Examination that is the subject of the appeal and was taken during one of the above administrations.
- The student must have a course average in the subject under appeal (as evidenced in the official transcript that records grades achieved by the student in each quarter of the school year) that meets or exceeds the required passing grade by the school.

11. Does a student have to take a Regents Examination twice to be eligible for the special appeal?

No. Under this limited rule, a student need only take the Regents Examination under appeal one time during the specific administrations

(June 2022, August 2022, January 2023, June 2023, or August 2023) to be eligible to appeal.

- 12. If a student earns a 50-64 on a Regents Examination taken during one of the specific administrations (June 2022, August 2022, January 2023, June 2023, or August 2023), fails the course, but then remediates that coursework successfully through a make-up program, are they then eligible for the special appeal?**

Yes. Since the student took the Regents Examination during one of the 5 administration periods (June 2022, August 2022, January 2023, June 2023, or August 2023) and earned a score in the appropriate range (50-64), as long as the student passes the course prior to graduation, they would satisfy the eligibility conditions for the special appeal.

- 13. Do the special appeals only apply to students who graduated in the 2021-22 or 2022-23 school year?**

No. The special appeals may be granted to any student who takes a Regents Examination during the June 2022, August 2022, January 2023, June 2023, or August 2023 test administration periods who also meets the eligibility conditions listed above.

- 14. Do the special appeals apply to students earning diploma credit through accelerated coursework in grade 8?**

Yes. If a grade 8 student enrolled in accelerated coursework is granted a special appeal, they may earn diploma credit in the course and may use the appeal to satisfy the assessment requirements for any diploma type (local, Regents, Regents with advanced designation).

15. Can students earn a Regents diploma with advanced designation using a special appeal?

Yes. Unlike traditional appeals, special appeals may be applied to any diploma type (local, Regents, or Regents with advanced designation).

16. In order to calculate the student's final average in the course to determine eligibility for the special appeal, does the student's grade on the Regents Examination get included in the calculation?

No. The calculation of a passing average only includes the average of course grades earned throughout the school year during the course. Final course grades and grading policies are determined at the local level however, in making a determination as to whether a student is eligible to apply for a special appeal, the grade earned on the Regents Examination is not included in the calculation of the "course average" described in Question #9.

17. If the official transcript does not evidence grades for each marking period, does a school or district need to modify their transcripts?

No. The phrase "as evidenced in the official transcript that records grades achieved by the student in each quarter of the school year" intends to ensure the Regents Examination score is excluded from the calculation of the course average when determining a student's eligibility for the special appeal. The format of transcripts is locally determined.

18. Could a student fail one marking period and still be eligible for a special appeal?

Yes, if the combined average of course grades earned throughout the school year results in a passing average and the student earned a score in the 50-64 range on a Regents Examination taken during one of the five administration periods (June 2022, August 2022, January 2023, June 2023, or August 2023), the student would be eligible for a special appeal.

For example, a student earned a 54 on the Algebra I Regents Examination in June 2022. The student's course grades in Algebra I were: Q1 – 60, Q2 – 65, Q3 – 70, Q4 – 75. The average of the student's Algebra I course grades equals 67.5. The school's passing grade is a 65. Since the student took the Regents Examination in June 2022, earned a score of 50-64, and earned a final course average that meets or exceeds the required passing grade by the school, the student is eligible for the special appeal. If this school's local grading policy included the Regents Examination score as 20% of the final course average, while the student would not yet earn credit for the Algebra I course (based on the local grading policy), the student remains eligible for the special appeal.

19. Can the superintendent determine that all students meeting the special appeal criteria be given an appeal automatically?

Yes. While the committee must review each case to ensure eligibility, the superintendent may either set a predetermined standard by which they would be willing to grant any appeal, or they may choose to review each appeal case separately.

20. Can a parent or person in parental relation refuse the special appeal on behalf of a student if they wish the student to remain in school and receive additional instruction?

Yes. If a parent wishes their child to remain in school for additional instruction and the granting of such an appeal would complete the student's diploma requirements, the parent may refuse an appeal sought by the school on behalf of the student.

21. If a parent or person in parental relation refused a special appeal so their child could remain in school, can the student be considered for an appeal in the future?

Yes. An eligible student may file an appeal at any time before they meet the diploma requirements and graduate.

Traditional Appeals

22. What are the eligibility requirements for students seeking a traditional appeal to graduate with a lower score on a Regents Examination?

Students seeking to appeal with required Regents Examination scores between 60 and 64 and students with disabilities seeking a local diploma using the low pass safety net with required Regents Examination scores between 52 and 54 must meet the following criteria to demonstrate that they met the State Learning Standards:

- Have taken the Regents Examination under appeal at least two times;
- Have at least one score on the Regents Examination under appeal within the score band stated above;
- Present evidence that the student has taken advantage of academic help provided by the school in the subject tested by the Regents Examination under appeal; and

- Have a course average in the subject under appeal (as evidenced in the official transcript that records grades achieved by the student) that meets or exceeds the required passing grade by the school.

English language learners who first entered school in the United States in grade 9 or above, seeking to appeal with a score between 55 and 59 on the required Regents Exam in English Language Arts (ELA) must meet the following criteria to demonstrate that they met the State Learning Standards:

- Have taken the required Regents Examination in English Language Arts under appeal at least two times;
- Have been identified as an English language learner at the time the student took the Regents Examination in English Language Arts the second time;
- Have at least one score on the required Regents Examination in English Language Arts between 55 and 59;
- Present evidence that the student has taken advantage of academic help provided by the school in English language arts; and
- Have a course average in English language arts (as evidenced in the official transcript that records grades achieved by the student) that meets or exceeds the required passing grade by the school.

23. In the past students were required to meet a minimum attendance rate of 95% exclusive of excused absences. Why is that requirement not listed above?

The Board of Regents eliminated the attendance requirement from the appeal criteria.

24. Once an appeal has been initiated, how long does the standing committee have to make a recommendation to the Superintendent?

The standing committee shall review an appeal within 10 school days of its receipt and make a recommendation to the school superintendent or, in the case of New York City, the Chancellor or their designee, to accept or deny the appeal.

Assessment Exemptions



This section includes exemptions for major life events, [exemptions for transfer students](#), [exemptions due to COVID](#), and [exemptions from the US History & Government Regents Exam](#) (June/August 2022 and January 2023).

Exemptions for Major Life Events

This section addresses frequently asked questions related to [exemptions from diploma assessment requirements for major life events](#). Topics include [eligibility](#), [approval process](#), [application to specific diploma requirements](#), and [recording/reporting exemptions](#).

1. What constitutes a major life event?

A major life event includes any severe illness, severe medical condition, or life-altering incident that significantly impacts or prevents a student's participation in a required diploma assessment.

Severe illnesses and severe medical conditions are acute or chronic illnesses or health conditions that carry a high risk of mortality, detrimentally impact students' quality of life and daily function, and/or are significantly burdensome in symptoms and/or treatments.

Life-altering incidents are experiences or occurrences that significantly change students' lives.

Examples of major life events include, but **are not limited to**, cancer treatment, hospitalization, an accident causing serious injury, a destructive house fire, the death of a parent or person in parental relation, homelessness, or trauma related to deportation or detainment.

Eligibility

2. What are the eligibility conditions for exemptions for major life events?

Students who meet the following eligibility requirements are eligible for exemptions for major life events.

- Student was enrolled in a course of study or make up program leading to a required diploma assessment;
- Student met or exceeded the expected learning outcomes for the course of study; and
- A major life event significantly impacted or prevented the student's participation in such required diploma assessment.

3. Do exemptions for major life events only apply to Regents Examinations?

No, exemptions for major life events may be applied to any required diploma assessment. This includes Regents Examinations, [NYSED-](#)

[Approved Regents Examination Alternatives](#) , and [NYSED-Approved Pathway Assessments](#).

4. **Can exemptions for major life events be applied to diploma assessments administered prior to Spring 2025?**

No. Exemptions for major life events may not be applied to diploma assessments with administration dates prior to Spring 2025.

5. **Do exemptions for major life events only apply to a student's first attempt at passing the assessment?**

No. A student who previously attempted a required diploma assessment may be eligible for an exemption for a major life event.

6. **Could the requirement to be enrolled in a course of study or make up program be fulfilled prior to the Regents Examination period for which a student is now requesting an exemption for a major life event?**

Yes. This requirement could be satisfied any time prior to the request for an exemption for a major life event.

7. **Do exemptions for major life events apply to checkpoint exams in world languages?**

Yes. Schools and districts may grant an exemption from a required checkpoint exam for students who meet the eligibility conditions for an exemption due to a major life event.

8. **Do exemptions for major life events apply to students in grade 8**

accelerated coursework?

Yes. For eligible students in grade 8 accelerated courses that culminate in a diploma assessment requirement or a checkpoint exam in world languages, diploma credit for the associated course of study may be awarded upon the granting of an exemption for a major life event.

9. If a student took a diploma assessment requirement and also met the eligibility conditions for an exemption for a major life event, can the exemption be granted?

Yes. If consent is obtained and the superintendent deems the student satisfied the eligibility conditions, the exemption for a major life event may be granted. This is true even if the student attempted the specific diploma assessment requirement.

10. Do exemptions for major life events apply to students experiencing trauma related to deportation or detainment?

Yes. If trauma related to deportation or detainment significantly impacts or prevents the student from taking a diploma assessment requirement, the student may be considered for an exemption due to a major life event.

11. Are students required to satisfy the 1,200-minute laboratory requirement to be eligible for an exemption from a Regents Examination in science?

Provided all eligibility conditions are met, and the laboratory minutes missed are due to the impact of a major life event, the exemption may be granted. A student should not be denied an exemption solely because

they have not met the 1,200-minute laboratory instruction requirement, when the reason they have not met the minute requirement is the same major life event that is prohibiting or severely impacting their ability to take the Regents Examination in science.

12. Are students required to satisfy the Investigations requirement to be eligible for an exemption from a Regents Examination in science?

Provided all eligibility conditions are met, and the Investigation(s) missed is/are due to the impact of a major life event, the exemption may be granted. A student should not be denied an exemption solely because they have not met the Investigations requirement, when the reason they have not met the requirement is the same major life event that is prohibiting or severely impacting their ability to take the Regents Examination in science.

Approval Process

13. Are exemptions for major life events subject to approval by the New York State Education Department?

No. Exemptions for major life events are approved by the superintendent of a school district or the principal, head of school, or their equivalent, of a charter school or registered nonpublic school, as applicable.

14. Can a high school principal in a public school district grant an exemption for a major life event?

No. Only the superintendent of a public school district may grant an exemption for a major life event.

- 15. Once an exemption for a major life event is granted, does it carry forward or does the student need to take the assessment at a later date?**

Once an exemption for a major life event is granted, the exemption may be applied to that specific diploma assessment requirement. Exemptions (for that specific diploma assessment) remain with students until they graduate or exit high school.

- 16. Who initiates requests for exemptions for major life events?**

Requests for exemptions from the diploma assessment requirements for major life events may be initiated by the student, their parent or person in parental relation, or their school counselor, teacher, or administrator.

- 17. Must parents consent to exemptions for major life events?**

Prior to the superintendent's decision to grant an exemption, consent must be obtained from the student's parent or person in parental relation, or from the student if the student is over the age of majority (age 18) and is not a student with a disability receiving services under the Individuals with Disabilities Education Act (IDEA), or from the student if the student is under the age of majority but is emancipated and acting on their own behalf.

The parent or person in parental relation shall be notified in a language or mode of communication they best understand.

- 18. How should parents or persons in parental relation of a student with a disability indicate their consent to an exemption for a major life event?**

Consent must be documented in writing; the specific format may be determined by each local school or district. If the local school or district chooses to use the [sample form provided by the New York State Education Department](#) , parents and persons in parental relation may indicate their consent to an exemption for a major life event by completing the consent section of the sample form and returning it to the school.

Consistent with Commissioner's Regulation [§200.5\(a\)\(5\)\(ii\)](#), prior to the student's graduation, the school must provide prior written notice indicating that the student is not eligible to receive a free appropriate public education after graduating with a local or Regents diploma.

19. **What should the district do if the parent or person in parental relation of a student with a disability, with an Individualized Education Program (IEP) and/or Committee on Special Education (CSE) documentation indicating they were planning to return to school, cannot be contacted in order to consent to an exemption for a major life event?**

Exemptions for major life events cannot be granted without prior consent. Reference questions 14 and 15 for additional information.

20. **Does any documentation relating to exemptions for major life events need to be submitted to the New York State Education Department?**

No. Documentation related to exemptions for major life events must be maintained locally. Such documentation should not be sent to the New York State Education Department.

[Application to Specific Diploma Requirements](#)

- 21. If a student with a disability or an English language learner has access to safety net options or appeals leading to a local diploma, should schools consider exempted exams to represent a score of 55 or 65?**

All exempted exams for all students should be considered scores of 65 for the purposes of making diploma type determinations, except for purposes of applying the compensatory safety net option. No numeric score shall be reported on the student's transcript. Reference the question below for additional information on the compensatory safety net option.

- 22. Can an exempted Regents Examination be used to compensate for a Regents Examination score of 45-54 for students with disabilities who are using the compensatory safety net option?**

No, students with disabilities eligible for the compensatory safety net may not use Regents Examination exemptions to compensate for scores of 45-54.

- 23. Can exemptions for major life events be applied to the Regents diploma with advanced designation?**

Yes. Exemptions for major life events may be applied to all diploma types (local, Regents, and Regents with advanced designation).

- 24. Can students earn the honors and mastery endorsements if they are granted an exemption for a major life event?**

Yes. Additional information can be referenced on the [Endorsements and Seals webpage](#).

25. Can students earn credit by examination using exemptions for major life events?

No. Since an earned score of 85 or above is required to earn credit by examination, students cannot earn credit by examination using exemptions for major life events.

26. If a district includes Regents Examination scores in the calculation of the final course grade, what does the New York State Education Department recommend districts use in lieu of the Regents Examination score for students who are granted exemptions for major life events?

The New York State Education Department does not encourage the use of Regents Examination grades in final course grades as Regents Examination scores are scaled scores and not percentage scores typically used for course averages. Please reference the [District Grading Policy memo](#).

Grading policies are determined by each local Board of Education. This includes any decisions to use Regents Examination scores in final course grade calculations. Districts may need to amend local grading policies if they use Regents Examination grades in the calculation of students' final course grades.

27. Can a student earn college credit after being granted an exemption for a major life event on an AP Exam?

Exemptions for major life events only pertain to the New York State high school diploma requirements. Policies related to awarding college credit for AP Exam scores are determined by each institution of higher education. Reference the [College Board's Credit and Placement webpage](#) for additional guidance related to earning college credit or advanced placement for AP Exam scores.

28. **If an exemption is granted from a NYSED-approved Regents Examination Alternative (e.g., AP US History) in May, is the student required to take the associated Regents Examination in June (e.g., Regents Examination in US History & Government)?**

No. Once an exemption for a major life event is granted, that specific diploma assessment requirement is satisfied. The student is not required to take (or retake) the specific diploma assessment nor take another assessment in lieu of that examination.

There is no State requirement for students enrolled in AP coursework to take the associated Regents Exam.

Recording / Reporting Exemptions

29. **Is there a specific form that must be used for exemptions for major life events?**

No. The NYS Education Department created a [sample form](#)  for optional use by schools and districts. Schools and districts are free to create their own local process for the documentation of exemptions for major life events.

30. **How should schools reflect examination exemptions on students'**

transcripts?

Student transcripts should not reflect a numeric score for any examination where the student is granted an exemption. Student transcripts should reflect the examination name and a score of "E" or "Ex" for exempt.

31. How are exemptions for major life events reported to the New York State Education Department?

Exemptions for major life events are reported to SIRS in Assessment Fact with a Standard Achievement code of 86 and no alpha score. If the assessment was taken, the numeric score can be reported on the same record as the 86.

32. How do exemptions factor into accountability indicators/determinations?

Given the federal requirement to assess all students, participation rate plays an important role in calculating the Weighted Average Achievement used in NYSED's system of meaningful differentiation among schools. For accountability purposes, students granted exemptions for major life events will be included as non-participants in the Weighted Average Achievement Indicator. Major life event exemptions will be excluded from the Core Academic Indicator. Students granted exemptions for major life events will remain included in all other high school accountability system indicators.

Exemptions for Transfer Students

33. Were transfer students eligible for exemptions due to COVID?

Transfer students were eligible for exemptions due to COVID if they met one of the eligibility conditions outlined in Question 35 below.

34. Are students who enroll in high school after being on home instruction in NYS eligible for any assessment exemptions?

The out-of-state transfer assessment exemptions do not apply to students instructed in NYS. This includes students who received home instruction in NYS, as well as students who were enrolled in a registered or non-registered public or nonpublic NYS high school. All students may be eligible for exemptions for major life events.

35. Are out-of-state transfer students entering in grade 11 eligible for any assessment exemptions?

Yes. If the student entered a NYS high school for the first time in grade 11 (or re-entered a NYS high school in grade 11 after spending 3 or fewer semesters in a NYS high school), the principal may exempt the student from the requirement for the Regents Examination in Global History and Geography. Such students may also be eligible for exemptions for major life events.

36. Are out-of-state transfer students entering in grade 12 eligible for any assessment exemptions?

Yes. If the student entered a NYS high school for the first time in grade 12 (or re-entered a NYS high school in grade 12 after spending 3 or fewer semesters in a NYS high school), the principal may exempt the student from the requirement for the Regents Examination in science and the Regents Examination in Global History and Geography. Such students may also be eligible for exemptions for major life events.

37. May NYSED-Approved Regents Examination Alternatives be used in place of Regents Examinations when reviewing a transfer student's record?

Yes. A current list of all [NYSED-Approved Regents Examination Alternatives](#)  is available on the Office of State Assessment website.

Exemptions due to COVID

38. Were all students intending to take a June 2020, August 2020, January 2021, June 2021, August 2021, and/or January 2022 Regents Examination exempted from the associated diploma requirement?

In order to qualify for an exemption from a June 2020, August 2020, January 2021, June 2021, August 2021, and/or January 2022 Regents Examination, a student had to meet one of the following requirements:

- Be enrolled in a course of study that would ordinarily culminate in the taking of a June 2020, August 2020, January 2021, June 2021, August 2021, and/or January 2022 Regents Examination and earn credit for such course of study by the end of the first semester of the 2021-22 school year; or
- Be enrolled in a course of study in grade 7 or 8 that would ordinarily culminate in the taking of a June 2020, August 2020, January 2021, June 2021, August 2021, and/or January 2022 Regents Examination and meet the learning standards for such course of study; or
- Successfully complete a make-up program by the end of the first semester of the 2021-2022 school year for the purpose of earning course credit in a course of study that would ordinarily culminate in

the taking of a June 2020, August 2020, January 2021, June 2021, August 2021, and/or January 2022 Regents Examination; or

- Be preparing to take a required Regents Examination in order to graduate at the end of the first semester of the 2021-22 school year; or
- Transferred to a NYS high school from either a high school located outside of NYS or from another NYS high school in which Regents Examinations were not administered and earned transfer credit in a course for which they intended to take a corresponding Regents Examination in June 2020, August 2020, January 2021, June 2021, August 2021, and/or January 2022.

Students granted an exemption from any examination are not required to pass such specific Regents Examination to meet the assessment requirements for any diploma type (local, Regents, or Regents with advanced designation).

39. Can parents decline an exemption from an assessment requirement due to COVID?

The parents or persons in parental relation of students who are eligible to graduate in the 2021-22 school year and beyond as a result of having met an assessment requirement through an exemption at any time may decline such exemptions. Specifically, if the parent or person in parental relation explicitly declines the exemption of a Regents Examination, a NYSED-Approved Regents Examination Alternative, a Pathway examination or an exemption to the unfinished Career Development and Occupational Studies (CDOS) Commencement Credential requirements applied to their child as a result of COVID, a diploma will not be

conferred on such student until such student meets the applicable diploma requirement.

Additional information can be referenced in the [Parental Right to Decline Examination Waivers memo \(December 2020\)](#)  and the [Parental Right to Decline Examination Waivers memo \(May 2020\)](#) . The [Regents Examination Exemption Declination Form for Parents](#)  is also available.

40. **If a student with a disability or an English language learner has or had access to safety net options or appeals leading to a local diploma, should schools consider exempted exams to represent a score of 55 or 65?**

All exempted exams for all students should be considered scores of 65 for the purposes of making diploma type determinations, except for purposes of applying the compensatory safety net option. No numeric score shall be reported on the student's transcript. Reference the question below for additional information on the compensatory safety net option.

41. **Students with disabilities have access to the compensatory safety net option where a score of 65 or above on one Regents Examination can compensate for a score of 45-54 on another Regents Examination. Can an exempted Regents Examination be used to compensate for a Regents Examination score of 45-54 for students with disabilities who are using the compensatory safety net option?**

No, students with disabilities eligible for the compensatory safety net may not use Regents Examination exemptions to compensate for scores of 45-54.

42. **Can exemptions from Regents Examinations be used when determining**

a student's ability to earn the Seal of Civic Readiness?

Yes. Students who received an exemption from a social studies Regents Examination should use their course average to determine their points for this category. If a student has a passing course average below 85, they should receive 1 point (proficiency) for this category. If a student has a passing course average of 85 or above, they should receive 1.5 points (mastery) for this category.

43. Where can I find additional information related to exemptions due to COVID?

Additional information can be referenced in the following resources:

- [FAQ Related to the Cancellation of the January 2022 Regents Examinations](#) 
- [FAQ Related to the June 2021 and August 2021 Exemptions from Diploma Requirements](#) 
- [FAQ Related to the Cancellation of the January 2021 Regents Examinations](#) 
- [FAQ Related to the June 2020 and August 2020 Exemptions from Diploma Requirements](#) 

Exemptions from the US History & Government Regents Exam

44. Were all students intending to take a June 2022, August 2022, or January 2023 Regents Examination in US History and Government (Framework)

exempted from the associated diploma requirement?

For the purpose of meeting the diploma requirements, students were exempt from the Regents Examination in US History and Government (Framework) if they intended to take such exam in June 2022, August 2022, or January 2023 and:

- were enrolled in a course of study that would ordinarily culminate in the taking of the June 2022, August 2022, or January 2023 Regents Examination in US History and Government (Framework) and earned credit for such course of study by the end of the first semester of the 2022-23 school year; or
- were enrolled in a course of study in grade 7 or grade 8 that would ordinarily culminate in the taking of the June 2022, August 2022, or January 2023 Regents Examination in US History and Government (Framework) and met the learning standards in such course of study; or
- by the end of the first semester of the 2022-23 school year, successfully completed a make-up program for the purpose of earning course credit in a course that would ordinarily culminate in the Regents Examination in US History & Government; or
- were preparing to take the Regents Examination in US History and Government (Framework) in order to graduate in June 2022, August 2022, or January 2023; or
- transferred to a NYS high school and earned credit in a course for which they intended to take the Regents Examination in US History and Government (Framework) in June 2022, August 2022, or January 2023.



1. What are the assessment requirements for a Regents diploma?

The assessment requirements for a Regents diploma include:

- 4 Regents Examinations or NYSED-Approved Regents Examination Alternatives, one in each of the following disciplines:
 - English language arts,
 - mathematics,
 - science, and
 - social studies; and
- 1 pathway (any of the [multiple pathway options](#)).

2. What are the assessment requirements for a Regents diploma with advanced designation?

Since advanced designation requires two additional mathematics assessments and one additional science assessment, to earn a Regents diploma with advanced designation students must meet the following assessment requirements:

- 7 Regents Examinations and/or NYSED-Approved Regents Examination Alternatives including:
 - English language arts,
 - 3 mathematics,

- life science,
- physical science,
- social studies, and
- +1 pathway (any of the multiple pathway options).

To earn advanced designation, such students would also need to complete one of the following three sequences:

- 3-unit sequence in world languages and a passing score on the locally developed checkpoint B examination,
- 5-unit sequence in the arts, or
- 5-unit sequence in career and technical education (CTE).

3. Is the local diploma available to general education students?

Yes, a student who falls within five points of attaining a score of 65 on a Regents Examination required for graduation may appeal their score. Students who successfully appeal one required Regents Examination score no more than 5 points below passing may graduate with a Regents diploma. Those successfully appealing two required Regents Examination scores no more than 5 points below passing may graduate with a local diploma. The appeals process is available to all students.

4. If a student was eligible for an exemption due to COVID-19, do those exemptions still apply?

Yes. Students granted an exemption from any examination are not required to take or pass such specific examination to meet the assessment requirements for any diploma type (local, Regents, or

Regents with advanced designation). Exemptions remain with students through graduation. Information related to exemptions due to COVID-19 may be referenced in the following resources:

- [January 2022 FAQ](#) 
- [June and August 2021 FAQ](#) 
- [January 2021 FAQ](#) 
- [June and August 2020 FAQ](#) 

5. What courses must a student complete in order to meet the pathway requirements?

The pathway regulations address assessment requirements only. Generally, with the exception of [credit by exam](#), a student must complete the course(s) designed to culminate in the assessment(s) they wish to take.

Example: If a student wishes to use the Regents Examination in Geometry for the +1 pathway assessment, they must complete a Geometry course before being admitted into the Regents Examination.

6. May a student use a +1 pathway assessment in the same discipline but a different course as one of the exams they used in the 4 required assessments? For example: Chemistry and AP Chemistry or ELA and AP English?

If a course culminates in a different exam than that used for one of the 4 required exams, it may be used as a +1 pathway option.

Example: A student passes a Regents level Living Environment course and passes the Regents Exam in Living Environment for the required

science assessment, then takes a separate AP Biology course and passes the AP Biology Exam with a score of 3 or higher. The AP Biology Exam can be used to fulfill the +1 Pathway requirement.

7. What is the CDOS Pathway?

The CDOS Pathway allows all students to use the Career Development and Occupational Studies Commencement Credential as a pathway in lieu of the fifth required assessment for graduation. A student seeking a diploma using the CDOS pathway option must complete the required 22 units of diploma credit, pass one Regents Exam or NYSED-Approved Regents Examination Alternative in each discipline (English language arts, math, science, and social studies), and also complete the requirements for earning the CDOS Commencement Credential.

Students may use either option 1 or option 2 to earn the CDOS Commencement Credential. Both options can be referenced on the [Multiple Pathways webpage](#).

8. Is the CDOS Pathway available to all students?

Yes.

9. Where can I find more information about the CDOS Commencement Credential?

Additional information about the CDOS Commencement Credential can be referenced on the [Multiple Pathways webpage](#).

10. The Department only offers three Regents Examinations in mathematics. How will a student complete a STEM (mathematics) pathway and earn

the Regents diploma with advanced designation if they have to pass a total of 4 mathematics examinations?

Students wishing to pursue the STEM (mathematics) pathway and meet the requirements for the Regents diploma with advanced designation must use at least one NYSED-Approved Regents Examination Alternative in mathematics.

11. What assessments, other than Regents Exams, can students use for the 4 +1 Pathway option?

To fulfill the +1 Pathway requirement, students may use the successful completion of:

- a NYSED-Approved Pathway assessment including:
 - [NYSED-Approved Pathway Assessments in the Arts](#),
 - [NYSED-Approved Pathway Assessments in Career Development and Occupational Studies](#) (CDOS Option 2), or
 - [NYSED-Approved Pathway Assessments in World Languages](#);
- a [NYSED-Approved Regents Examination Alternative](#) ;
- a [NYSED-Approved Secondary CTE Program](#) ;
- the [Career Development and Occupational Studies Commencement Credential](#) (CDOS Option 1);
- the [Individual Arts Assessment Pathway \(IAAP\)](#); or
- the [Seal of Civic Readiness requirements](#).

12. Will the Department be adding more approved assessments for the 4 +1 Pathway option?

The Department will consider approving additional assessments for the +1 Pathway option. New approved assessments will be published online with the current approved assessments. Additional information can be referenced on the [Procedure for Evaluation and Approval of Assessments for Use as +1 Pathway Assessments webpage](#).

13. Can the NYSED-Approved Regents Examination Alternatives for ELA be used to fulfill the +1 pathway assessment?

One of the [NYSED-Approved Regents Examination Alternatives](#) for ELA can be used as the +1 pathway assessment if the student has passed the Regents Examination in English Language Arts and then goes on to take an additional examination in a different course that culminates in an assessment in English selected from the list of [NYSED-Approved Regents Examination Alternatives](#) .

14. Do all NYSED-Approved Secondary CTE programs culminate in an approved +1 pathway assessment?

Yes. As of August 2018, the Department streamlined the approval process to allow +1 pathway CTE technical assessments to be approved as a component of an application for CTE Program Approval rather than through a separate application process. CTE technical assessments aligned with approved CTE programs of study that allow for technical endorsement on the high school diploma are considered as approved +1 Pathway Assessments and may be used as the fifth required assessment toward graduation. Additional information can be referenced on the [CTE Program Approval webpage](#).

15. A student is enrolled in a NYSED-Approved Secondary CTE program. Does the student have to successfully complete all three parts of the

technical assessment included in the approved program in order to exercise the +1 pathway option?

Yes. In order to utilize the CTE Pathway option, a student must successfully complete all components of the NYSED-Approved Secondary CTE Program which includes the 3-part technical assessment.

16. How are schools required to report students' use of the 4 +1 Pathway Option to the NYS Education Department?

Reporting requirements are listed in the [Student Information Repository System \(SIRS\) Manual](#). Per this guidance, students must always be reported with Career Path Code HUM if they passed at least two Regents Exams in social studies, one Regents Exam or NYSED-Approved Regents Examination Alternative in English, math, and science, regardless of whether the student pass additional Regents Examinations, NYSED-Approved Regents Examination Alternatives, or Department-Approved Pathway Assessments in the Arts, Career and Technical Education, and/or World Languages, and/or met the requirement of a CDOS Commencement Credential. If a student did not use the Humanities (HUM) pathway (student passed only one Social Studies Regents Exam) and met the requirements for multiple pathways (i.e., STEM Math and STEM Science), the student should be reported with the Career Path Code for the career pathway with which the student most closely associates.

Program service records should still be completed by the CTE program provider for all concentrators in NYSED-Approved Secondary CTE Programs independent of graduation records. For information on program service records, please see page 37 of the [Student Information Repository System \(SIRS\) manual](#).

17. Can students earn a Regents diploma with advanced designation using a special appeal to earn a diploma with a lower score on a Regents Examination taken in the 2021-22 or 2022-23 school year?

Yes. Unlike traditional appeals, special appeals may be applied to any diploma type (local, Regents, or Regents with advanced designation).

18. Is there a maximum number of special appeals that can be applied to a specific diploma type?

No. Appeals granted under this temporary rule for lower scores earned during these specific administration dates (June 2022, August 2022, January 2023, June 2023, or August 2023), do not count towards the maximum number of appeals that can be applied to specific diploma types.

In addition to any special appeals, students may continue to meet the assessment requirements for the Regents diploma using one traditional appeal on a required Regents Exam score no more than 5 points below passing. In addition to any special appeals, students may continue to meet the assessment requirements for the NYS Local Diploma using two traditional appeals on required Regents Exam scores no more than 5 points below passing. Traditional appeals may not be used towards the Regents diploma with advanced designation. Additional information on the traditional appeal process may be referenced in the Appeal to Graduate with a Lower Score on a Regents Examination memo (April 2017).

19. Could students graduate with a combination of special and traditional appeals?

Yes. If students were granted special appeals, they may continue to utilize the traditional appeals to graduate with either a Regents or local diploma.

Diplomas



1. Can the New York State Education Department provide a copy of my high school diploma?

No. The New York State Education Department does not maintain student records. Contact the school or district from which you graduated to request a duplicate diploma or obtain a copy of your high school transcript.

If the high school is closed, contact the local school district to determine the location of student records.

2. Can the New York State Education Department provide a copy of my High School Equivalency (HSE) diploma?

Yes. If you are seeking a duplicate copy of a High School Equivalency (HSE) diploma or transcript resulting from the HSE Exam Pathway, College Credit Pathway, the National External Diploma Program (NEDP), or the Regents/HSE Exam Pathway, please visit the [Duplicate Diplomas and Transcripts](#) page.

3. Does the New York State Education Department provide diploma blanks?

Regents diploma blanks are furnished by the New York State Education Department to registered high schools that request them as part of their online examination request for January or June Regents Examinations.

Additional questions related to ordering diplomas may be referred to our Operations Unit at (518) 474-8220.

4. Can veterans request a high school diploma if they left high school prior to graduating?

[Operation Recognition](#) allows eligible veterans to earn high school diplomas if they left school without graduating. [Section 305 of the NYS Education Law](#) created Operation Recognition to recognize the dedication and sacrifice of veterans who left school before graduation by awarding them a high school diploma.

Additional questions related to high school diplomas for veterans may be referred to the Adult Education Program and Policy (AEPP) via email to adulthood@nysed.gov or by calling (518) 474-8940.

Posthumous High School Diplomas

5. Can New York State schools award posthumous diplomas?

Yes, in May 2024 the Board of Regents approved an [emergency action to amend the Regulations of the Commissioner of Education](#)  to provide such discretion. The amendment allows school districts, charter schools, and registered nonpublic schools, at the request of the student's parent or person in parental relation, the ability to confer a high school diploma on a deceased student if the student was enrolled in the school or district at the time of death.

6. Did the student need to be in a certain grade level or have a certain academic standing at time of death to be eligible for a posthumous diploma?

No. Any student who was enrolled in the school or district at the time of death is eligible for a posthumous diploma.

7. Can an administrator, counselor, or teacher request a posthumous diploma on a student's behalf?

No. The request must be made by the student's parent or person in parental relation. If the student's parent or person in parental relation is also deceased, the student's next of kin may request a posthumous diploma.

8. Can a posthumous diploma be issued on behalf of a student who was on-track to graduate before the effective date of the emergency amendment (May 2024)?

Yes. At the request of the student's parent or person in parental relation, schools may issue posthumous diplomas to any student who was enrolled in the school or district at the time of death.

9. Can the school honor the student as part of the graduating class during their graduation ceremony?

Nothing prohibits schools from honoring deceased students as part of their graduation ceremonies. Policies related to graduation ceremonies are locally determined by each New York State school or district.

10. Can posthumous diplomas be issued outside of the regular diploma

issuance dates (January, June, and August)?

The determination of when to issue a posthumous diploma is decided by the local district, charter school, or registered nonpublic school.

11. Are districts required to create a policy related to the issuance of posthumous diplomas?

No. While local schools may establish their own policies and practices related to posthumous diplomas, the regulatory amendment does not require district to create a policy related to the issuance of posthumous diplomas.

12. Are there any forms or documentation that must be provided to the New York State Education Department prior to issuing a posthumous diploma?

No. There are not any State-mandated forms. Local schools may establish their own policies and practices related to posthumous diplomas.

Endorsements and Seals



This section includes honors, [mastery](#), and [seals](#).

Honors

1. How does a student earn the honors endorsement?

To earn the honors endorsement, a student must meet the assessment requirements for the Regents diploma or the Regents with advanced designation and also earn a computed average of 90 or above on the Regents Examinations applicable to their diploma type.

As long as exemptions continue to influence students' ability to graduate, the calculation for the honors endorsement will be dependent upon the number of scored Regents Examinations the student has completed (applicable to their diploma type). In instances where students have more earned scores and/or exemptions than required for the diploma type, schools may use the combination most beneficial to the student.

Students with a minimum of three scored Regents Examinations applicable to the diploma

In instances where students have at least three scored Regents Examinations to be included in the assessments required for the diploma type, exemptions due to COVID-19 would be removed from the calculation. If the computed average of the Regents Examination scores required for the diploma (not including exemptions) equals 90 or above, the student earned the honors endorsement.

Students with fewer than three scored Regents Examinations applicable to the diploma

The student's final course grade for each exempted Regents Examination will be substituted in the calculation for honors. If the computed average of the scored Regents Examinations and the

final course grades for courses for which exemptions were granted equals 90 or above, the student earned the honors endorsement.

- 2. May out-of-state transfer students who transfer to a NYS school for the first time in grades 11 or 12, and have either one or two Regents Examination(s) waived, receive an honors endorsement?**

Yes. The requirements to receive a high school diploma with honors remain the same, except with a fewer number of required Regents Examinations.

- 3. If a student is granted an appeal to earn a diploma with a lower score on a Regents Examination (traditional or special), may the student substitute the final course average in the computation for the honors endorsement?**

No. The only instance when a student may be able to substitute the final course average is when the student received an exemption due to COVID-19. If a student is granted an appeal to earn a diploma with a lower score on a Regents Examination and the assessment is required for the diploma type, the actual score earned shall be included in the calculation for the honors endorsement.

- 4. Can a student earn the honors endorsement if the student is granted a Regents Examination exemption?**

Yes.

Example A: A student meets the assessment requirements for a Regents diploma with advanced designation with the following Regents Examination scores:

- English language Arts, exemption
- Algebra I, 92
- Geometry, 94
- Algebra II, exemption
- Living Environment, 90
- Earth Science, 89
- Chemistry, exemption
- Global History and Geography, 98

Since the student has three or more scored Regents Examinations applicable to the diploma type, the exemptions are removed from the calculation for the honors endorsement.

Computed Average: $(92 + 94 + 90 + 89 + 98) \div 5 = 92.6$

Since the computed average of the Regents Examination scores required for the diploma type equals 90 or above, the student earned the honors endorsement. The student's final course grades are not considered in this case, since the student has at least three scored Regents Examinations applicable to the diploma type.

Example B: A student meets assessment requirements for a Regents diploma with the following examination scores:

- Regents Examination in English Language Arts, exemption
 - Final course grade, 94
- Regents Examination in Algebra I, 92
- Regents Examination in Earth Science, 89

- Regents Examination in Global History and Geography, exemption
 - Final course grade, 96
- Regents Examination in US History and Government, exemption (+1 pathway)
 - Final course grade, 88

Since the student has fewer than three scored Regents Examinations applicable to the diploma type, the student's final course grades for the courses for which exemptions were granted are substituted in the calculation for the honors endorsement.

Computed Average: $(94 + 92 + 89 + 96 + 88) \div 5 = 91.8$

Since the computed average of the two Regents Examination scores (92, 89) and the final course grades (94, 96, 88) equals 90 or above, the student earned the honors endorsement.

5. How should NYSED-Approved Regents Examination Alternatives be considered in the calculation for the honors endorsement?

To be eligible for the honors endorsement, students may substitute no more than two [NYSED-Approved Regents Examination Alternatives](#)  for the required Regents Examinations. NYSED-Approved Regents Examination Alternatives would be removed from the computed average.

Example: A student meets assessment requirements for a Regents diploma with the following examination scores:

- Regents Examination in English Language Arts, exemption

- Final course grade, 88
- Regents Examination in Algebra I, 92
- Regents Examination in Living Environment, 90
- Regents Examination in US History and Government, exemption
 - Final course grade, 98
- AP Biology Exam, exemption (+1 pathway)

Since the student has only one NYSED-Approved Regents Examination Alternative included in the exams applicable to the diploma type, it will be removed from the computed average. Additionally, since the student has completed only two scored Regents Examinations, the final course grades must be included in the computed average for those Regents Examinations for which an exemption was granted.

Computed Average: $(88 + 92 + 90 + 98) \div 4 = 92$

Since the computed average of the two Regents Examination scores (92, 90) and the final course grades (88, 98) equals 90 or above, the student earned the honors endorsement.

Mastery in Mathematics and/or Science

6. How does a student earn the mastery in mathematics and/or science endorsement?

A student may earn the mastery in mathematics and/or science endorsement(s) if the student meets the requirements for a Regents diploma with advanced designation and:

- passes 3 math and/or 3 science Regents Examinations with a score of 85 or higher; or
- passes 2 math and/or 2 science Regents Examinations with a score of 85 or higher and has been granted an exemption on a third math and/or science Regents Examination; or
- passes 1 math and/or 1 science Regents Examination with an 85 or higher and has earned a final course grade of 85 or higher in 2 additional math and/or science courses culminating in a Regents Examination for which they were granted an exemption.

7. If a student is granted a special appeal, may the student substitute the final course average in the determination of the mastery endorsement?

No. The only instance when a student may be able to substitute the final course average is when the student received an exemption due to COVID-19. If a student is granted a special appeal and the assessment is one the three required mathematics and/or science Regents Examinations, the actual score earned shall be included in the determination of the mastery endorsement.

8. Can a student earn the mastery endorsement(s) in mathematics and/or science if the student is granted an exemption from a Regents Examination in mathematics and/or science?

Students granted exemptions from Regents Examination(s), due to COVID, may still earn the mastery endorsement(s).

Example 1: A student has earned a score of 90 on the Algebra I Regents Examination, a score of 87 on the Geometry Regents Examination, and received an exemption from the Algebra II Regents Examination. This

student passed 2 Regents Examinations with an 85 or above and received an exemption from a third Regents Examination in mathematics, therefore the student earned the Mastery in Mathematics endorsement.

Example 2: A student earned a score of 90 on the Living Environment Regents Examination, a score of 96 on the Earth Science Regents Examination, and an exemption from both the Chemistry Regents Examination and the Physics Regents Examination. Since the student passed two science Regents Examinations with a score of 85 or above and received an exemption from a third Regents Examination in science, the student is deemed to have met the requirements for the Mastery in Science endorsement. In this case, the student's final course grade does not need to be considered.

Example 3: A student passed the Algebra I Regents Examination with a score of 85, received an exemption from the Geometry Regents in June 2020, and received an exemption from the Algebra II Regents Examination in June 2021. If the student earned a course grade of 85 or above in both Geometry and Algebra II, the Mastery in Mathematics endorsement will be added to the student's diploma.

Seals

9. Where can I find information about the Seal of Biliteracy or the Seal of Civic Readiness?

Information about the seals can be referenced on the following webpages:

- [New York State Seal of Biliteracy \(NYSSB\) webpage](#)

- [Seal of Civic Readiness webpage](#)

Grading Policies



1. Are grading policies uniform throughout New York State?

No. Grading policies are locally determined by each NYS school or district.

2. Can Regents Examination scores be included in final course grades?

The NYS Education Department does not require nor recommend the inclusion of Regents Exam scores in the computation of final course averages, however grading policies are determined by each local school or district. Additional information can be referenced in the [District Grading Policy memo](#).

3. If a district includes Regents Examination scores in the calculation of the final course grade, can the district substitute a score of 65 when an appeal or exemption is granted?

The NYSED discourages the use of Regents Examination grades in final course grades as Regents Examination scores are scaled scores and not percentage scores typically used for course averages. Please reference the [District Grading Policy memo](#). Grading policies are determined by each local Board of Education. This includes any decisions to use Regents Examination scores in final course grade calculations.

Since no Regents Exam score was earned when students were granted exemptions, districts may need to amend local grading policies if they use Regents Examination grades in the calculation of students' final course grades. An appeal does not change the score on the examination but rather allows the student to apply it as if it were a passing score to any diploma type.

Safety Nets for Students with Disabilities



This section includes general safety net information, [safety nets and the 4 +1 pathway options](#), and [compensatory safety net](#).

General Information

1. What safety net options are available so that students with disabilities may graduate with a local diploma?

Students with disabilities have the following safety net options available to meet testing requirements for a local high school diploma: the 55-64 low pass option, the 55-64 low pass option with appeal, and the compensatory option.

- The 55-64 low pass option provides an additional safety net for all students with disabilities. Under this safety net, a score of 55-64 on required Regents Examinations meets testing requirements for a local diploma.
- The 55-64 low pass option with appeal allows a student with a disability who has taken and passed a course in preparation to take

a Regents Examination, has a 65 course average, and scores between 52-54 on up to two Regents Examinations, to appeal to graduate with a local diploma using this lower score.

- The compensatory option allows students with disabilities who score between 45-54 on one or more of the required Regents Examinations (except for ELA or mathematics) to compensate the low score with a score of 65 or higher on another required Regents Examination to graduate with a local diploma. To be eligible for the compensatory safety net option, students with disabilities must meet all the conditions as follows:
 1. Obtain a score of at least 55 (or an approved appeal of 52-54) on both the ELA and Mathematics Regents Examinations.
 2. Obtain a passing grade that meets or exceeds the required passing grade by the school for the course in the subject area of the Regents Examination in which he or she received a score of 45-54.
 3. Have a satisfactory attendance rate, in accordance with the district's or school's attendance policy, for the school year during which the student took the examination in which he or she received a score of 45-54, exclusive of excused absences.

A score of 65 or higher on a single examination may not be used to compensate for more than one examination for which a score of 45- 54 is earned. A student with a disability who makes use of the Compensatory Safety Net Option may also use the Low Pass Appeal Option (i.e., appeal scores of 52-54) to meet graduation requirements for a local diploma.

All safety net options can be referenced in the resource [Safety Net Options Available to Students with Disabilities to Graduate with a Local Diploma](#) .

2. Are the safety net options available to students with Section 504 accommodation plans?

Yes. Students with Section 504 accommodation plans (504 plans) under Section 504 of the Rehabilitation Act are eligible for the 55 low pass, 55 low pass with appeal, and the compensatory safety net options. A student's 504 plan must specify, as appropriate, that the student is recommended for the safety nets. (See also Question #13 under "Superintendent Determination for Eligible Students with Disabilities")

3. Are the safety net options available to students with disabilities who are declassified?

Yes. Students with disabilities requiring special education who are declassified in grade eight or thereafter may be eligible for the same safety net options as if they were continuing as a student with a disability. The committee on special education should discuss the student's need for continuing eligibility for the safety nets and document its recommendations made upon declassification of the student to the board of education and in prior written notice to the student's parents.

4. Are safety net options applicable to Regents Examinations a student has taken prior to being identified as having a disability?

Yes. Safety net options are applicable to Regents examinations a student has taken prior to being identified as having a disability. For students with disabilities identified under Section 504 of the Rehabilitation Act, the

504 plan must specify, as appropriate, that the student is recommended for the safety nets.

5. **If a student with a disability has access to safety net options leading to a local diploma, should schools consider the special appeal for Regents Examinations taken during the 2021-2022 and 2022-2023 school years?**

Yes. Since these special appeals may be applied to any diploma type, schools should consider a student with a disability's eligibility for a special appeal prior to applying the existing safety net options.

Safety Nets and the 4 +1 Pathway Options

6. **May a student with a disability use the low pass safety net (55-64 on all Regents Exams) and/or the compensatory safety net (45-54 on Regents Exams other than ELA and math) in conjunction with the 4 +1 Pathway option in order to earn a local diploma?**

Yes. However, these safety net provisions may only be applied to Regents Examinations and not to NYSED-Approved Regents Examination Alternatives.

7. **How is the low pass safety net option applied when a student with a disability chooses a 4 +1 Pathway option?**

The low pass safety net option lowers the passing score for students with a disability to 55. A student with a disability who chooses the 4 +1 Pathway may graduate with a local diploma using the low pass safety net option if they receive a score of 55-64 on any/all of the Regents Examinations required for the diploma including the pathway if it is a Regents Exam. Students relying on the NYSED-Approved Regents

Examination Alternative in the pathway of their choice must achieve at least the minimum acceptable passing score for that examination.

8. How is the compensatory safety net option applied when a student with a disability chooses a 4 +1 Pathway option?

The student with a disability may use a score of 65 or higher on one Regents Examination to compensate for a score of 45 to 54 on a Regents Examination other than ELA and math. A score of at least 55 (or an approved appeal of 52-54) must be earned on the ELA Regents Examination and on at least one mathematics Regents Examination.

This option applies only to Regents Examinations. High scores on a NYSED-Approved Regents Examination Alternative may not be used to compensate for a lower score on a Regents Examination. Likewise, a high score on a Regents Examination (65 or more) cannot be used to compensate for a lower score on a NYSED-Approved Regents Examination Alternative.

9. Students with disabilities using the compensatory safety net option must score at least 55 (or an approved appeal of 52-54) on the mathematics and ELA Regents Examinations. If a student wishes to satisfy the +1 pathway assessment with an additional mathematics Regents Exam, must they score a 55 on that additional mathematics Regents Exam?

No. Students with disabilities using the compensatory safety net must have a 55 (or an approved appeal of 52-54) or better on at least one mathematics Regents Exam. A student scoring between 45-54 on a second mathematics Regents Exam may use a score of 65 or higher on another required Regents Exam to compensate for the 45-54 score on the second mathematics exam.

Compensatory Safety Net

10. Can students with disabilities use the 55 low pass safety net option if they are using the compensatory safety net option?

Yes. Students with disabilities may combine both the 55-64 low pass, or successful appeal of a score between 52-54, and compensatory safety net options to graduate with a local diploma.

11. Can students with disabilities earning a score of 65 or higher on *any one* of the required Regents Examinations use that score to compensate for a score between 45 and 54 on *any one* of the required Regents Examinations?

A student with a disability may not use a score of 65 or higher on one of the required Regents Examinations to compensate for a score of 45-54 on either the math or the English required Regents Examinations.

However, students with disabilities can use a score of 65 or higher on any of the required Regents Examinations, including English and/or math, to compensate for a score between 45 and 54 on another required Regents Examination.

12. What is the maximum number of required Regents Examinations for which students with disabilities can use the compensatory safety net option?

For purposes of receiving a local diploma, under the current Regents Examination requirements, students with disabilities earning between a 45 and 54 on up to two required Regents Examinations (except for

English and math) may compensate for those scores with scores of 65 or higher on two other required Regents Examinations.

- 13. For students with disabilities who successfully appealed to earn a diploma with a required Regents Examination score between 60 and 64, in accordance with section 100.5(d)(7) of the Regulations of the Commissioner of Education, can the score of the appeal be used to compensate for a lower score on another required Regents Examinations? (Revised January 2017)**

No. In a successful appeal, the score of 60, 61, 62, 63 or 64 remains the same but the student may graduate with that score. Therefore, the score of the appeal may not be used by students with disabilities to compensate for a score between 45-54 on another required Regents Examination because the appealed score is not 65 or higher.

- 14. If a student with a disability scores 65 or higher on two Regents Examinations in the same subject area (e.g., math), may each of these scores be used to compensate for scores of 45 to 54 on two other required Regents Examinations?**

If the student with a disability scores 65 or higher on two of the Regents Examination needed to fulfill the assessment graduation requirements under the 4 +1 Pathway option, both of these examinations may be used to compensate for a score of 45 to 54 on another required Regents Examination. However, a score of 55 (or an approved appeal of 52-54) or higher is required for one mathematics Regents Examination and the ELA Regents Examination.



1. Will the Special Determination option be available for students graduating in August 2022 or thereafter?

No. The Special Determination only applied to students graduating in June 2022.

2. Were all students eligible for the Special Determination to graduate with a local diploma in June 2022 or was this option only for students with disabilities?

All students were eligible for the Special Determination option. To be eligible for the Special Determination, the student must have otherwise meet all requirements for graduation in June 2022 and also met one of the following criteria:

- The student was enrolled in a course(s) of study or make up program during the 2021-2022 school year leading to a June 2022 Regents Examination, earned credit in such course(s) of study by the scheduled date of the Regents Examination, participated in such examination(s) but did not achieve a passing score or qualify for a special appeal; **or**
- The student was enrolled in a course(s) of study or make up program during the 2021-2022 school year that was intended to culminate in the student's participation in a June 2022 Regents Examination and the student earned credit in such course(s) of study by the date of such examination but was unable to

participate in such examination(s) due to illness, including isolation restrictions due to COVID.

- 3. If the student met the eligibility condition for a Special Determination because they were unable to participate in a required Regents Examination due to illness or isolation restrictions due to COVID-19 was documentation required?**

If the student was unable to participate due to required isolation due to COVID-19, the student was required to follow the Centers for Disease Control and Prevention (CDC) and/or local guidelines for quarantine. Otherwise, the illness must have been documented by the student's physician.

- 4. Could a student use the Special Determination option to earn a Regents diploma or a Regents diploma with advanced designation in June 2022?**

No. The Special Determination was only be used to grant a student a local diploma. If the student wished to pursue a Regents diploma but was either unable to qualify for a special appeal (i.e., they scored below a 50) or unable to take one or more Regents Examination required to graduate because of illness or quarantine, the student could retake the Regents Examination(s) at a later administration.

- 5. Could a Special Determination be made if a student was unable to participate in (or pass/appeal) more than one June 2022 Regents Examination?**

Yes, if the student otherwise met the graduation requirements and also met the eligibility conditions for the Special Determination to graduate with a local diploma.



This section includes general information, [Documentation and Forms](#), [Eligibility](#), the [Role of the CDOS Commencement Credential](#), [Students Enrolled in Schools or Programs Outside of the Public School District](#), and [Use with Other Safety Nets and Appeals](#).

1. What is the superintendent determination option?

The Superintendent Determination option allows a superintendent (or the principal/head of school of a registered nonpublic school or charter school, as applicable) to make a local determination that a student with a disability has otherwise met the standards for graduation with a local high school diploma when such student has not been successful, because of their disability, at demonstrating their proficiency on one or more of the Regents Exams required for graduation.

2. Must a student with a disability take the Regents Examinations in the subject area(s) under review more than once to be eligible for the superintendent determination option?

No.

3. Must a student with a disability pass both the ELA and mathematics Regents Examinations in order to be eligible for the superintendent determination option?

No. A student with a disability who was unable to achieve a minimum score of 55 or did not initiate an appeal of a score of between 52 and 54

on the Regents Examination(s) in ELA and/or mathematics may be considered an eligible student for the superintendent determination option, provided that the student has completed the requirements for the NYS CDOS Commencement Credential.

Additionally, if a student with a disability was granted an exemption from the Regents Examination(s) in ELA and/or mathematics, they may use such exemption(s) to meet the ELA and/or mathematics Regents Examination eligibility condition(s) to be considered for the superintendent determination option.

4. Where can school districts find written information for parents explaining the graduation requirements and safety net options, including the process for requesting the superintendent determination option for their child?

General information regarding graduation requirements is available on the Graduation Requirements webpage. Resources include a Summary of the New York State Diploma and Credential Requirements and Safety Net Options Available to Students with Disabilities to Graduate with a Local Diploma.

Documentation and Forms

5. Must the school principal sign the Superintendent Determination Option for Graduation with a Local Diploma (Updated March 2025) form?

No. Consistent with Section 100.5(d)(12) of the Regulations of the Commissioner of Education, the superintendent of a school district (or the principal, head of school, or their equivalent, of a charter school or nonpublic school, as applicable) must certify that the information

provided is accurate by signing the form prescribed by the Commissioner of Education.

6. Must the superintendent submit the form to the NYS Education Department (NYSED) if, based upon a review of the documentation, the superintendent determines that a student with a disability should not be awarded a local high school diploma?

Yes.

7. Can the *Superintendent Determination Option for Graduation with a Local Diploma* (Updated March 2025) form be adapted for local use?

No. School districts must use the Superintendent Determination Option for Graduation with a Local Diploma (Updated March 2025) form prescribed by the Commissioner. This form may not be altered in any way and must have all fields completed upon submission.

8. Is there any other documentation that needs to be submitted to NYSED with the *Superintendent Determination Option for Graduation with a Local Diploma* (Updated March 2025) form (i.e., appeal forms, transcripts, teacher letters etc.)?

No.

9. Is there a required form parents must use in making a request for a superintendent determination option?

No. However, NYSED has developed a sample form to assist parents in requesting a superintendent determination, [Parent Request for Superintendent Determination Option for Graduation with a Local Diploma](#)  (Sample Form). Parents are not required to use this form. If a

parent chooses not to use this form, the written request should indicate that the parent wishes to have their child considered for the superintendent determination option and have their academic records reviewed to determine if they meet the conditions for the superintendent determination option and have otherwise met the standards for graduation with a local diploma.

- 10. If a parent submits a written request for a superintendent determination option mid-semester (e.g., October), when should the review be conducted and the diploma awarded, if it is determined that the student should be awarded a local high school diploma?**

The superintendent (or principal, head of school, or their equivalent, of a charter school or nonpublic school, as applicable) must, as soon as practicable, document the evidence reviewed and make a determination as to whether a student has met the requirements for issuance of a local diploma through the superintendent determination option. However, a diploma may only be awarded at the end of the semester (i.e., January, June or August) in which the superintendent determination was made and may not be awarded in anticipation that requirements will be met.

- 11. Can a superintendent determination option for a local diploma be submitted in anticipation of a student meeting the requirements for graduation?**

No. The *Superintendent Determination Option for Graduation with a Local Diploma (Updated March 2025)* form documents the evidence reviewed; certifies that the information is accurate; and indicates that the superintendent has determined that the student has either met or has not met all the requirements for a local diploma. Therefore, a superintendent should only sign and submit such form after they made a

determination as to whether a student has met the requirements and should be awarded a local diploma through the superintendent determination option.

- 12. What documentation are schools required to maintain for audits of compliance relating to a superintendent determination option? How long must this documentation be retained?**

School districts, registered nonpublic high schools, and charter schools are required to maintain completed Superintendent Determination Option for Graduation with a Local Diploma forms in a student's record. This form should be retained permanently in the student's cumulative achievement record equivalent. Evidence used to make this determination must be retained in accordance with the Records and Disposition Schedule for New York Local Government Records (LGS-1).

Eligibility

- 13. Does the superintendent determination option apply to students who have a Section 504 accommodation plans or who have been declassified from special education?**

No. Only students with disabilities who have a current individualized education program (IEP) and are receiving special education services can be considered for the superintendent determination option.

- 14. May a student with a disability who exited school without a local or Regents diploma reenroll in school and be considered for the superintendent determination option?**

Yes. A student with a disability who has not yet earned a diploma may reenroll in school, per district policy, until the end of the school year in which the student turns age 21 and be considered for the superintendent determination upon parent request, provided the student:

- has a current IEP;
- is receiving special education programs and services; and
- is participating in coursework at the time the superintendent determination is made. This coursework need not be in the subject area(s) in which the student did not receive a passing score on the Regents Examination(s) required for graduation.

15. May a student with a disability who exited school without a local or Regents diploma and who is over age 21 reenroll in school and be considered for the superintendent determination option?

No. Pursuant to Education Law sections 3202 and 4402.5, students with disabilities are entitled to a free appropriate public education (FAPE) until the end of the school year in which the student turns age 21 or until the receipt of a regular (local or Regents) high school diploma, whichever is earlier. Once an individual is over age 21, they would no longer be considered a student with a disability and would not be eligible for the superintendent determination option.

16. May a student with a disability who exited school with a CDOS Commencement Credential as their only exiting credential reenroll in school and be considered for the superintendent determination option?

Yes. A student with a disability who has exited school with a CDOS Commencement Credential as their only exiting credential may reenroll in school until the end of the school year in which the student turns age 21 and be considered for the superintendent determination option upon parent request, provided the student: has a current IEP, is receiving special education programs and services, and is participating in coursework at the time the superintendent determination is made.

- 17. Can the superintendent determine that a student with a disability has otherwise demonstrated proficiency in a subject area based solely on a student having attained a grade for the course that meets or exceeds the required passing grade by the school, given that such grade reflects the student's body of work, or must additional documentation be reviewed to make such determination?**

In making this determination, the superintendent must consider evidence that the student attained a grade that meets or exceeds the required passing grade by the school for the subject area(s) under review. Such evidence may include the student's final course grade as well as student work completed throughout the school year and/or interim grades on homework, projects, class work, quizzes, tests, etc., that demonstrate that the student has met the learning standards for the course. The superintendent must review whatever evidence is necessary to make a determination. Whether the superintendent requires the review of work completed throughout the school year as well as any interim grades for a particular student is a decision that must be made at the local level.

- 18. Can a student be considered for a superintendent determination option if they were not successful in passing the Regents pathway assessment**

(e.g., one additional Regents Examination in a different course in math, science or social studies)?

Yes. A superintendent determination option may be used for a student with a disability who has otherwise met the standards for graduation with a local diploma when such student has not been successful, because of their disability, at demonstrating their proficiency on a Regents pathway examination required for graduation.

19. Can a superintendent determination option be requested by a student who is over the age of majority (age 18)?

No. The Individuals with Disabilities Education Act permits states to decide whether procedural rights transfer from parents to students with disabilities when they reach the age of majority. NYS law does not currently allow such transfer of rights. Therefore, a student in NYS may not request a superintendent determination, which may result in a change of placement due to graduation with a local diploma, unless the student is emancipated in accordance with State law.

20. If, upon parent request, the superintendent determines that a student meets the requirements for a local diploma through the superintendent determination option, can that student stay in school until age 21 to take the Regents examinations to earn a local diploma through other safety net options or earn a Regents diploma (e.g., the student wants to increase their score(s) on a Regents examination(s) or attempt to pass the Regents to earn a Regents diploma)?

No. Pursuant to Education Law sections 3202 and 4402.5, a student continues to be eligible for a free appropriate public education (FAPE) until the end of the school year in which the student turns age 21 or until

the receipt of a regular (local or Regents) high school diploma, whichever is earlier. A school district has fulfilled its obligation to provide FAPE when a student with a disability graduates with a local diploma through the superintendent determination option.

Role of the CDOS Commencement Credential

21. **Can the CDOS Commencement Credential requirements be used for both ELA and mathematics Regents Examinations eligibility condition(s) for the superintendent determination option?**

Yes. On or after December 12, 2017, a student who was unable to achieve a minimum score of 55 or did not initiate an appeal of a score between 52 and 54 on the ELA and/or mathematics Regents Examinations may use the NYS CDOS Commencement Credential requirements to be considered an eligible student for the superintendent determination option.

If a student was unable to meet the ELA and/or mathematics Regents Examination(s) eligibility condition(s), the superintendent must conduct a review to determine whether such student has otherwise demonstrated proficiency in the knowledge, skills, and abilities in that subject area (ELA and/or mathematics), in addition to any other subject areas where the student was not able to demonstrate their proficiency of the State's learning standards as measured by the corresponding Regents Examination(s) required for graduation.

22. **Can a student with a disability who earned the CDOS Commencement Credential by successfully passing one of the Commissioner's approved Nationally Recognized Work Readiness Assessments (Option 2) use this to meet the ELA and/or mathematics Regents Examination eligibility**

conditions to be considered for the superintendent determination option?

Yes. A student with a disability who is unable to achieve a minimum score of 55 or does not initiate an appeal of a score of between 52 and 54 on the ELA and/or mathematics Regents Examinations may use the NYS CDOS Commencement Credential requirements, earned through either Option 1 or 2, to be considered an eligible student for the superintendent determination option.

- 23. Is a student with a disability who uses the CDOS Commencement Credential to meet the ELA and/or mathematics Regents Examinations eligibility condition(s) but meets all the remaining assessment requirements for graduation eligible to be considered for a local diploma through the superintendent determination option? For example, the student scored a 45 on the ELA Regents Examination but achieved passing scores on the mathematics, science, and social studies Regents Examinations and completed the requirements for the CDOS Commencement Credential for the 4+1 CDOS Pathway option.**

Yes. Upon parent request, a student who uses the CDOS Commencement Credential to meet the ELA and/or mathematics Regents Examinations eligibility condition(s) for the superintendent determination option but has met all the assessment requirements for the remaining Regents Examinations required for graduation would be eligible for consideration of a local diploma through the superintendent determination option.

For the student in the example provided, the superintendent would need to conduct a review to determine whether such student has otherwise demonstrated proficiency in the knowledge, skills, and abilities in ELA

and has met the requirements for issuance of a local diploma. Such review would not be required for any other subject areas.

24. **Is a student with a disability eligible for the superintendent determination option if they did not meet the ELA and/or mathematics Regents Examination eligibility condition(s) for the superintendent determination option (i.e., did not receive a minimum score of 55 on both the ELA and Mathematics Regents Examinations required for graduation or successfully appeal a score between 52 and 54) or complete the requirements for the NYS Career Development and Occupational Studies (CDOS) Commencement Credential but received a score of 50 or 51, and was granted a special appeal on the ELA and/or mathematics Regents Examinations?**

No. To be eligible for the superintendent determination option, a student with a disability must have taken the ELA and mathematics Regents Examinations required for graduation and received a minimum score of 55 on both examinations or successfully appealed a score between 52 and 54 or completed the requirements for the CDOS Commencement Credential.

If a student with a disability was granted an exemption from the Regents Examination(s) in ELA and/or mathematics, they may use such exemption(s) to meet the ELA and/or mathematics Regents Examination eligibility condition(s) to be considered for the superintendent determination option.

**Students Enrolled in Schools or Programs
Outside of the Public School District**

25. Are registered nonpublic high schools and charter schools required to conduct a review to determine whether a student has otherwise met the standards for graduation with a local diploma through the superintendent determination option upon parent request?

Yes. In accordance with Section 100.5(d)(12) of the Regulations of the Commissioner of Education, for students with disabilities otherwise eligible to graduate in June 2016 and thereafter, a school superintendent (or the principal, head of school, or their equivalent, of a or charter school or nonpublic school, as applicable) has the responsibility to determine if a student with a disability has otherwise met the standards for graduation with a local diploma when such student has not been successful, because of their disability, at demonstrating their proficiency on the Regents examinations required for graduation.

26. How does the review for the superintendent determination option for eligibility for a local diploma occur for a student with a disability placed by the committee on special education in an approved private school?

If the approved private school is not a registered high school, the superintendent determination must be made by the superintendent of the student's school district of residence. The private school should have a mechanism for communicating back to the district of residence what courses, curricula, and examinations the student has taken so credit can be appropriately awarded and a superintendent can make the determination if the student has met the standards for graduation with a local diploma through the superintendent determination option.

If the approved private school is a registered high school, the chief school officer of the approved private school would be responsible for conducting a review to determine whether a student has otherwise met

the standards for graduation with a local diploma through the superintendent determination option for a student with a disability enrolled in that school.

27. **Who is responsible for conducting a review for the superintendent determination option and signing the *Superintendent Determination Option for Graduation with a Local Diploma* form for a student placed in a board of cooperative educational services (BOCES) program?**

If the parents of a student in a BOCES program request that their child be considered for a superintendent determination option, such determination must be made by the superintendent of the student's school district of residence, in consultation with the principal of the high school of attendance. The school superintendent of the district in which the student resides would be responsible for signing the Superintendent Determination Option for Graduation with a Local Diploma (Updated March 2025) form, which describes the evidence reviewed and the decision rendered by the superintendent. The BOCES should have a mechanism for communicating back to the district of residence what courses, curricula, and examinations the student has taken so credit can be appropriately awarded and a superintendent can make the determination if the student has met the standards for graduation with a local diploma through the superintendent determination option.

Use with Other Safety Nets and Appeal Options

28. **Can a student with a disability who uses the special appeals also use the superintendent determination option?**

Yes. An eligible student with a disability who does not meet all the assessment requirements for graduation through appeals, including special appeals, and the existing safety net options (i.e., the compensatory safety net option, the 55-64 low pass safety net option, the 55-64 low pass safety net option with appeal and superintendent determination option) but is otherwise eligible to graduate in June 2016 and thereafter, must be considered for a local diploma through the superintendent determination option. The superintendent would only need to conduct a review of the subject area(s) where the student was unable to meet the assessment requirements for graduation through appeals and/or the safety net options.

29. **If a student with a disability meets the assessment requirements for graduation using the low pass (55-64) and/or the compensatory safety net options, is the student eligible for consideration of the superintendent determination option?**

No. The superintendent determination option is used only for students with disabilities who do not meet the assessment requirements for graduation through the other existing safety net options.

30. **For a Regents subject area(s) under review, must a student with a disability use the appeal option in order to be considered eligible for the superintendent determination option?**

No.

31. **Must a student with a disability's teacher and school principal be involved in the review of the student's academic proficiency when the student has not been successful, because of their disability, in**

demonstrating proficiency on the Regents Examinations required for graduation?

The superintendent, in consultation with the school principal and, whenever possible, the student's teacher for the subject area in which the student did not receive a passing score on the Regents Examination, must review documentation of evidence that the student has otherwise met the standards for graduation with a local diploma. The superintendent must certify, on a form prescribed by the Commissioner, that the student either did or did not demonstrate academic proficiency in the subject area(s) in which the student did not receive a passing score on the Regents Examination(s) and does or does not meet the requirements for award of a local diploma.

Transcripts



1. Can the New York State Education Department provide a copy of my high school diploma or transcript?

No. The New York State Education Department does not maintain student records. Contact the school or district from which you graduated to request a duplicate diploma or obtain a copy of your high school transcript.

2. What information does the State require to be included on students' transcripts?

The only State requirement for students' transcripts includes "the assessment[s] the student has passed to meet diploma requirements, and the score[s] achieved." This requirement can be referenced in [Section 100.5\(a\)\(5\) of the Regulations of the Commissioner of Education](#). The language cited above can be found under each content area.

Otherwise, the format and content of a student's transcript is locally determined by each school or district.

3. How are schools required to record students' use of the 4 +1 Pathway Option on transcripts and permanent records?

Pathway options are a part of regulatory provisions outlining what students must do to earn a high school diploma. Districts should record all assessments a student uses to meet the diploma requirements on transcripts and all commencement-level state assessments must be recorded on students' permanent records. There is no additional notation necessary on transcripts to indicate that a student met requirements using a pathway option.

4. How should schools record special appeals to earn a diploma with a lower score on a Regents Examination taken in the 2021-22 or 2022-23 school year?

Schools and districts must record the score of any Regents Examination on a student's permanent record. The student may select whether to record the actual score earned on the transcript or may elect instead to have an "SA" recorded to indicate special appeal.

5. How should schools record exemptions from Regents Examinations?

Student transcripts should not reflect a numeric score for any examination where the student is granted an exemption. Student transcripts should reflect the examination name and a score of "E" or "Ex" for exempt.

6. Must transfer students who are exempt from taking certain State assessments have their transcript and permanent records annotated?

Yes.

Transfer Students



This section includes assessment requirements for transfer students, [awarding transfer credit](#), [credit requirements for transfer students](#), [Interstate Compact on Educational Opportunity for Military Children](#), and [transfer students receiving special education services](#).

Assessment Requirements

1. What are the assessment requirements for students who transfer between NYS high schools?

Students who transfer between high schools in NYS must meet the same assessment requirements as other students enrolled in the receiving high school. When students transfer from NYS schools that do not administer Regents Examinations, they are still required to fulfill all the assessment requirements to earn a local or Regents diploma. The out-of-state transfer exemptions do not apply to in-state transfers. This includes

students who received home instruction in NYS, as well as students who were enrolled in a registered or non-registered public or nonpublic NYS high school.

2. What are the assessment requirements for out-of-state transfer students who enter grade 9 or grade 10 in a NYS school for the first time?

Transfer students who enter a NYS high school for the first time in grade 9 or grade 10 must meet all assessment requirements applicable to the diploma they wish to receive. There are no assessment exemptions for students entering in grades 9 or 10.

3. What are the assessment requirements for an out-of-state transfer student who enters a NYS high school for the first time in grade 11 in or who re-enters a NYS high school in grade 11 after spending 3 or fewer semesters in a NYS high school?

The principal may exempt the student from the requirement to pass a Regents Examination in Global History and Geography. If the student chooses to accept this exemption, in addition to meeting the credit requirements, they will need to pass the following Regents Examinations or the NYSED-Approved Regents Examination Alternatives to receive a Regents or local diploma:

- English,
- U.S. History and Government,
- one mathematics, and
- one science.

In this situation, the student need not pass an additional +1 pathway assessment.

To receive a Regents diploma with advanced designation, the student must meet the credit requirements and also pass the following Regents Examinations or NYSED-Approved Regents Examination Alternatives:

- English,
- U.S. History and Government,
- two science (one life science and one physical science), and
- three mathematics.

To earn advanced designation, the student would also need to complete one of the following three sequences:

- 3-unit sequence in world languages and a passing score on the locally developed checkpoint B examination,
- 5-unit sequence in the arts, or
- 5-unit sequence in career and technical education (CTE).

4. What are the assessment requirements for an out-of-state transfer student who enters a NYS high school for the first time in grade 12 or who re-enters a NYS high school in grade 12 after spending 3 or fewer semesters in a NYS high school?

The principal may exempt the student from the requirement for the Regents Examination in science and the Regents Examination in Global History and Geography. If the student chooses to accept these exemptions, in addition to meeting the credit requirements, they will

need to pass the following Regents Examinations or the NYSED-Approved Regents Examination Alternatives to receive a Regents or local diploma:

- English,
- U.S. History and Government, and
- one mathematics.

In this situation, the student need not pass an additional +1 pathway assessment.

To receive a Regents diploma with advanced designation, the student must meet the credit requirements and also pass the following Regents Examinations or NYSED-Approved Regents Examination Alternatives:

- English,
- U.S. History and Government,
- two science (one life science and one physical science)*, and
- three mathematics.

To earn advanced designation, the student would also need to complete one of the following three sequences:

- 3-unit sequence in world languages and a passing score on the locally developed checkpoint B examination,
- 5-unit sequence in the arts, or
- 5-unit sequence in career and technical education (CTE).

*Students entering a NYS high school for the first time in grade 12 would still need to pass two science assessments. For additional information,

reference [Section 100.5\(b\)\(7\)\(v\) of the Regulations of the Commissioner of Education](#).

5. If a transfer student was granted an appeal to graduate with a lower score on a Regents Examination, does the receiving high school have to accept the appeal?

Yes. Since the appeals process, review, and decision were made in the sending district, the receiving district must accept that determination.

6. Are out-of-state transfer students who utilize transfer assessment exemptions eligible for appeals to graduate with a lower score on a Regents Exam?

Yes. Transfer students using exemptions are still eligible to appeal to graduate with a lower score on a Regents Examination.

Awarding Transfer Credit

7. Who evaluates and grants transfer credit for students enrolling in a NYS school?

The principal, in consultation with relevant faculty, evaluates the transcript or other records of a transfer student enrolling in a NYS school and awards the appropriate units of transfer credit. Transfer credit **must** be awarded if credit was previously awarded by any registered NYS high school. Transfer credit **may** be awarded if the work completed at other educational or cultural institutions is deemed to be consistent with the NYS commencement level learning standards and is of comparable scope and quality to that which would have been done in the school awarding credit.

8. Who evaluates and grants transfer credit for students previously receiving home instruction, now enrolled in a NYS school?

The principal, in consultation with relevant faculty, evaluates the Individualized Home Instruction Plan (IHIP) and other records and awards the appropriate units of transfer credit. Transfer credit may be awarded if the home instruction included work consistent with the NYS commencement level learning standards and of comparable scope and quality to that which would have been done in the school awarding credit.

9. When a student transfers from one registered NYS high school to another registered NYS high school, must the receiving high school accept all the high school credits earned by the student?

Yes. The principal must grant transfer credit for all credit awarded by any registered NYS high school.

10. Can a student earn transfer credit for work done at other educational or cultural institutions and for work done through independent study?

The principal, after consulting with relevant faculty, may award transfer credit for work done at other educational and cultural institutions and for work done through independent study. The decision should be based on whether the student's record indicates that the work is consistent with NYS commencement level learning standards and is of comparable scope and quality to that which would have been completed in the school awarding the credit.

Credit Requirements

11. Does a student who transfers to a NYS high school after spending one or more semesters in an out-of-state high school need to earn two credits in physical education to meet the diploma requirements?

Students who enter a NYS high school from outside the state must enroll in Physical Education for every semester they are in a NYS high school and must earn 1/4 credit for each semester they are enrolled in the NYS school. Additional information can be referenced in the [Physical Education Regulatory Amendments memo](#).

12. To receive a Regents diploma or a Regents diploma with advanced designation, must students who transfer to a NYS school meet the same unit of credit requirements in a world language as other students?

Yes. Any student wishing to earn a Regents diploma, or a Regents with advanced designation, must meet the same unit of credit requirements as other students. This includes at least 1 unit of credit in world languages unless they are exempt from this requirement per their IEP. Additional information on earning diploma credit in world languages can be found in the [LOTE Frequently Asked Questions](#) .

13. Is a transfer student who is exempt from the one diploma credit in world languages also exempt from the world languages sequence required for advanced designation?

Yes. Any student who is exempt from the one diploma credit in a world language is also exempt from the sequence requirement for advanced designation. A student who is exempt from the world language credit requirement who also seeks a Regents diploma with advanced designation does NOT have to complete the 5-unit sequence in the arts

or CTE in lieu of the world languages sequence in order to meet the assessment requirements for the advanced diploma.

- 14. To receive a Regents diploma with advanced designation, do transfer students need to achieve three units of credit in world languages and take and pass a locally developed Checkpoint B examination in World Languages if they have a five-unit sequence in either career and technical education (CTE) or the arts?**

No. Students may choose a 3-unit sequence in world languages and the Checkpoint B exam, or they may opt for a five-unit sequence in either career and technical education (CTE) or the arts. Regardless of the selection, all students are required to achieve at least one unit of credit in a world language unless they are exempt from this requirement per their IEP. Any student who is exempt from the diploma credit in a world language is also exempt from the sequence requirement for advanced designation.

- 15. Must students transferring in grades 11 or 12 , wishing to meet the Regents diploma with advanced designation, and choosing a sequence in a world language, earn all 3 units of world languages credit in the same language?**

A student transferring between high schools in grade 11 or 12 may be exempt from the requirement of three units of credit in a single language for a Regents diploma with advanced designation if the language in which the student began a world language sequence in grade 9 or 10 is not offered in the school to which the student has transferred. In such cases, the student must complete three units of credit in world languages, but not necessarily in a single language.

Interstate Compact on Educational Opportunity for Military Children

16. What flexibilities exist for students in transition due to military orders?

Reference the [Interstate Compact webpage](#) for guidance related to students covered under the Interstate Compact on Educational Opportunity for Military Children.

Transfer Students Receiving Special Education Services

17. What are the requirements for transfer students with disabilities who have individualized education programs (IEPs) and who transfer within NYS, according to Commissioner's Regulations Section 200.4(e)(8)?

If a student with a disability and an individualized education program (IEP) in effect in NYS transfers from one school district to another in the State in the same school year, the new school district must provide, in consultation with the student's parents, services comparable to those described in the IEP from the previous school. That IEP will remain in effect until a new IEP that is consistent with Federal and State law and regulations is developed and implemented.

18. What are the requirements for transfer students with disabilities who have IEPs who transfer from outside NYS, according to Commissioner's Regulations Section 200.4(e)(8)?

If a student with a disability had an IEP that was in effect in another State transfers to a NYS school within the same school year, the new school district must provide, in consultation with the student's parents, services comparable to those described in the IEP from the previous school. That IEP will remain in effect until a new IEP that is consistent with Federal and State law and regulation is developed and implemented.

19. What are the requirements for obtaining records for transfer students with disabilities who have IEPs?

The new school district in which the student enrolls must take reasonable steps to obtain the student's records promptly from the previous school. These records include the IEP, supporting documents and any other records relating to the provision of special education services to the student from the previous school. (34 C.F.R. section 99.31(a)(2), Code of Federal Regulations, 2009 edition, Superintendent of Documents, U.S. Government Printing Office, Stop SSOP, Washington, DC 20402- 0001: 2009 – available at the Office of Counsel, New York State Education Department, State Education Building Room 148, 89 Washington Avenue, Albany, NY 12234).

20. If a student with a disability has been declassified or has a 504 Accommodation Plan and the student's last IEP or 504 Plan has documented the availability of testing accommodations or safety net options, do these recommendations apply when the student transfers to a new school district?

Yes. These recommendations would continue if the student transfers to a new school district unless the new district revises the last IEP or 504 Plan.

21. If a student with a disability has an IEP which indicates exemption from the world language requirement for graduation, does this exemption apply when the student transfers to a new school district?

Yes. The student would be exempt from the credit requirement in a world language when the student transfers to a new school district if, prior to transferring, the committee on special education (CSE) determined that the student's disability adversely affects the ability to learn a language and has recommended that the student be excused from the world language credit requirement for graduation. This action must be documented on the student's individualized education program (IEP). The exemption would continue when the student transfers to a new school district unless the new district develops, adopts, and implements a new IEP.

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